



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

January 24, 2022

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 21289

EXPIRATION DATE:2023-12-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Chemtrade Refinery Services Inc.
Lawrence, KS
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of IBCs containing the residue of certain hazardous materials where the closure nearest to the hazardous materials is open. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.35(e) in that the closure system nearest to the hazardous material must be closed first, except as stated herein.
5. BASIS: This special permit is based on the application of Chemtrade Refinery Services Inc. dated September 9, 2021 submitted in accordance with § 107.105 and the public proceeding thereon.

Tracking Number: 2021094400

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Phosphorus pentasulfide, free from yellow or white phosphorus	4.3	UN1340	II

7. SAFETY CONTROL MEASURES:a. PACKAGING:

(1) Specified packaging is a 76- or 100-cubic foot UN11B aluminum IBC for solids loaded or discharged by gravity. The 76-cubic foot IBC conforms to the specifications of Custom Metalcraft Inc. Drawing No. 511911, Revision D, dated July 11, 1995, and the 100-cubic foot IBC conforms to the specification of Custom Powder Systems Drawing No. 513169, Revision Level A, dated March 5, 2000, on file with the Approvals and Permits Division (OHMAPD).

(2) The IBCs are transported with the TechnaFlow 16" IBV-181 primary valve open and an additional outer lid bolted to a flange and sealed with a rubber gasket.

(3) The IBCs are only authorized to contain residue, as defined in § 171.8 of the HMR, of Phosphorus pentasulphide as described in paragraph 6 of this special permit.

b. OPERATIONAL CONTROLS: Packagings authorized under 7.a. of this special permit may only be transported as a return shipment from a customer to a repair facility. The primary valve must be repaired before the IBC may be reoffered for transportation pursuant to the HMR.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a packaging covered by this special permit may reoffer it for transportation provided no modification or change is made to the packaging and it is reoffered for transportation in conformance with this special permit and the HMR.

- b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.
- Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.
- No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.
- Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.
12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in

writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "W. Schoonover", is written over a light blue horizontal line.

for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: BenM/TG